

ELIZABETH II



1980 CHAPTER viii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to West Lothian District Council. [31st January 1980]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.
2. This Act may be cited as the West Lothian District Council Order Confirmation Act 1980. Short title.

SCHEDULE

WEST LOTHIAN DISTRICT COUNCIL

*Provisional Order to confer powers on the West Lothian District Council
with respect to stray dogs; and for other purposes.*

1973 c. 65. Whereas the West Lothian District Council (hereinafter referred to as "the Council") are vested with all the functions of a district council by virtue of section 2 of the Local Government (Scotland) Act 1973 for the area of West Lothian as the said area is described in column 3 of Part III of Schedule 1 to that Act:

And whereas it is expedient that powers should be conferred on the Council with respect to the control of stray dogs:

And whereas it is expedient that the other provisions of this Order should be enacted:

1936 c. 52. And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1936:

Now therefore, in pursuance of the powers contained in the last-mentioned Act, the Secretary of State hereby orders as follows:—

Short title. 1. This Order may be cited as the West Lothian District Council Order 1980.

Interpretation. 2. For the purposes of this Order—
"the Council" means the West Lothian District Council;
"the district" means the West Lothian district.

As to application of section 3 of Dogs Act 1906. 1906 c. 32. 3. In its application to the district section 3 of the Dogs Act 1906 (which provides for the seizure of stray dogs) shall be read and have effect as if the following subsections were substituted for subsections (1) to (7) of that section:—

"(1) Where a police officer or a duly authorised officer of the Council has reason to believe that any dog found in a highway or a place of public resort is a stray dog, he may seize the dog and may detain it until the owner has claimed it and paid all expenses incurred by reason of its detention.

(2) Where any dog so seized wears a collar having inscribed thereon or attached thereto the address of any person, or the owner of the dog is known, the chief officer of police or any person authorised by him in that behalf, or the Council, or any person authorised by them in that behalf, as the case may be, shall serve on the person whose address is given on the collar, or on the owner, a notice in writing stating that the dog has been so seized, and will be liable to be sold or destroyed if not claimed within seven clear days after the service of the notice.

(3) A notice under this section may be served—

- (a) by delivering it to the person on whom it is to be served;
or
- (b) by leaving it at that person's usual or last known place of abode, or at the address given on the collar; or
- (c) by forwarding it by post in a prepaid letter addressed to that person at his usual or last known place of abode, or at the address given on the collar.

(4) Where any dog so seized has been detained for seven clear days after the seizure, or, in the case of such a notice as aforesaid having been served with respect to the dog, then for seven clear days after the service of the notice, and the owner has not claimed the dog and paid all expenses incurred by reason of its detention, the chief officer of police, or any person authorised by him in that behalf, or the Council or any person authorised by them in that behalf, as the case may be, may cause the dog to be sold or destroyed in a manner to cause as little pain as possible.

(5) No dog so seized shall be given or sold for the purposes of vivisection.

(6) The chief officer of police and the Council shall keep, or cause to be kept, one or more registers of all dogs seized under this section by him or them which are not transferred to an establishment for the reception of stray dogs. The register shall contain a brief description of the dog, the date of the seizure and particulars as to the manner in which the dog is disposed of, and every such register shall be open to inspection by any member of the public on payment of a fee of five pence.

(7) A dog seized under this section shall not be disposed of by transferring it to an establishment for the reception of stray dogs unless a register is kept for that establishment containing such particulars as to dogs received in the establishment as are above mentioned, and such register is open to inspection by any member of the public on payment of a fee not exceeding five pence.”.

4. The costs, charges and expenses of and incidental to the preparing for, obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Council in such manner as they may determine. Costs of Order

c. viii *West Lothian District Council Order Confirmation
Act 1980*

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